



**Bill Number: S.B. 1134**

**Gowan Floor Amendment**

**Reference to: printed bill**

**Amendment drafted by: Zack Dean**

## **FLOOR AMENDMENT EXPLANATION**

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- Adds an emergency clause.

GOWAN FLOOR AMENDMENT  
SENATE AMENDMENTS TO S.B. 1134  
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-1019, Arizona Revised Statutes, is amended to  
3 read:

4 16-1019. Political signs; printed materials; tampering;  
5 violation; classification; definitions

6 A. It is a class 2 misdemeanor for any person to knowingly remove,  
7 alter, deface or cover any political sign of any candidate for public  
8 office or in support of or opposition to any ballot measure, question or  
9 issue or knowingly remove, alter or deface any political mailers,  
10 handouts, flyers or other printed materials of a candidate or in support  
11 of or opposition to any ballot measure, question or issue that are  
12 delivered by hand to a residence for the period commencing seventy-one  
13 days before THE FIRST DAY THAT EARLY BALLOTS MAY BE MAILED FOR an election  
14 AS PRESCRIBED BY SECTION 16-542 and ending fifteen days after the  
15 election, except that for a sign for a candidate in a primary election who  
16 advances to the general election, the period ends fifteen days after the  
17 general election. For a sign that supports or opposes a ballot measure,  
18 question or issue, this subsection applies only for the election at which  
19 the ballot measure, question or issue is scheduled to appear on the ballot  
20 and for the period commencing seventy-one days before that election and  
21 ending fifteen days after that election.

22 B. This section does not apply to the removal, alteration, defacing  
23 or covering of a political sign or other printed materials by the  
24 candidate or the authorized agent of the candidate in support of whose  
25 election the sign or materials were placed, by a person authorized by the  
26 committee in support of or opposition to a ballot measure, question or  
27 issue that provided the sign or printed materials, by the owner or  
28 authorized agent of the owner of private property on which such signs or

1 printed materials are placed with or without permission of the owner or  
2 placed in violation of state law or county, city or town ordinance or  
3 regulation.

4 C. Notwithstanding any other statute, ordinance or regulation, a  
5 city, town or county of this state shall not remove, alter, deface or  
6 cover any political sign if the following conditions are met:

7 1. The sign is placed in a public right-of-way that is owned or  
8 controlled by that jurisdiction.

9 2. The sign supports or opposes a candidate for public office or it  
10 supports or opposes a ballot measure, question or issue.

11 3. The sign is not placed in a location that is hazardous to public  
12 safety, obstructs clear vision in the area or interferes with the  
13 requirements of the Americans with disabilities act (42 United States Code  
14 sections 12101 through 12213 and 47 United States Code sections 225 and  
15 611).

16 4. The sign has a maximum area of sixteen square feet, if the sign  
17 is located in an area zoned for residential use, or a maximum area of  
18 thirty-two square feet if the sign is located in any other area.

19 5. The sign contains the name and telephone number or website  
20 address of the candidate or campaign committee contact person.

21 D. If the city, town or county deems that the placement of a  
22 political sign constitutes an emergency, the jurisdiction may immediately  
23 relocate the sign. The jurisdiction shall notify the candidate or  
24 campaign committee that placed the sign within twenty-four hours after the  
25 relocation. If a sign is placed in violation of subsection C of this  
26 section and the placement is not deemed to constitute an emergency, the  
27 city, town or county may notify the candidate or campaign committee that  
28 placed the sign of the violation. If the sign remains in violation at  
29 least twenty-four hours after the jurisdiction notified the candidate or  
30 campaign committee, the jurisdiction may remove the sign. The  
31 jurisdiction shall contact the candidate or campaign committee contact and  
32 shall retain the sign for at least ten business days to allow the  
33 candidate or campaign committee to retrieve the sign without penalty.

34 E. A city, town or county employee acting within the scope of the  
35 employee's employment is not liable for an injury caused by the failure to  
36 remove a sign pursuant to subsection D of this section unless the employee  
37 intended to cause injury or was grossly negligent.

38 F. Subsection C of this section does not apply to commercial  
39 tourism, commercial resort and hotel sign free zones as those zones are  
40 designated by municipalities. The total area of those zones shall not be  
41 larger than three square miles, and each zone shall be identified as a  
42 specific contiguous area where, by resolution of the municipal governing  
43 body, the municipality has determined that based on a predominance of  
44 commercial tourism, resort and hotel uses within the zone the placement of  
45 political signs within the rights-of-way in the zone will detract from the  
46 scenic and aesthetic appeal of the area within the zone and deter its

1 appeal to tourists. Not more than two zones may be identified within a  
2 municipality.

3 G. A city, town or county may prohibit the installation of a sign  
4 on any structure owned by the jurisdiction.

5 H. Subsection C of this section applies only during the period  
6 commencing seventy-one days before THE FIRST DAY THAT EARLY BALLOTS MAY BE  
7 MAILED FOR an election AS PRESCRIBED BY SECTION 16-542 and ending fifteen  
8 days after the election, except that for a sign for a candidate in a  
9 primary election who advances to the general election, the period ends  
10 fifteen days after the general election. For a sign that supports or  
11 opposes a ballot measure, question or issue, subsection C of this section  
12 applies only for the election at which the ballot measure, question or  
13 issue is scheduled to appear on the ballot and for the period commencing  
14 seventy-one days before THE FIRST DAY THAT EARLY BALLOTS MAY BE MAILED FOR  
15 that election AS PRESCRIBED BY SECTION 16-542 and ending fifteen days  
16 after that election.

17 I. This section does not apply to state highways or routes, or  
18 overpasses over those state highways or routes.

19 J. For the purposes of this section:

20 1. "General election" means the general election as prescribed by  
21 section 16-211.

22 2. "Primary election" means an election that is held as prescribed  
23 by section 16-201.

24 <<Sec. 2. Emergency

25 [This act is an emergency measure that is necessary to preserve the  
26 public peace, health or safety and is operative immediately as provided by  
27 law.]>>

28 Enroll and engross to conform

29 Amend title to conform

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